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'Trump-proofing' session a circus

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The day after Donald Trump won the presidency, Gov. Gavin Newsom called for a special session of the state Legislature to "safeguard California values and fundamental rights" from what he described as an "incoming federal administration that has threatened the state on multiple fronts."

That special session ended Monday, and lawmakers had their hands full.

In recent weeks, Trump has floated the idea of conditioning federal aid for the Los Angeles wildfires on California changing its voter identification and water policies. On Friday, his administration suddenly released large amounts of water from two San Joaquin Valley reservoirs, prompting a mad scramble among locals to prevent flooding. Trump is also planning to cut funding for an endangered fish at the center of California's water wars -- to say nothing of his attempts, thus far blocked by federal judges, to freeze potentially trillions of dollars in federal grants and loans.

Did California's political leaders deliver a coherent, common-sense legislative response to this chaos?

They did not. Instead, lawmakers closed out the special session with what could more reasonably be called a political circus than meaningful debate.

On party-line votes, they passed bills that would authorize up to $25 million for the state Department of Justice to take on the Trump administration in court and funnel $25 million to programs offering legal aid to immigrants, including those who are undocumented, and other "vulnerable persons at risk" from the federal government's actions. Those bills now head to Newsom's desk. (Ironically, Newsom, who has recently taken a far less antagonistic approach to the president, is currently in Washington, D.C., to meet with Trump administration officials about federal disaster aid.)

The funds could end up being money well spent -- according to a CalMatters analysis, the state spent about $10 million annually suing the Trump administration between 2017 and 2021 and won about two-thirds of its 123 cases.

But debating the substance of the bills themselves -- let alone thoughtfully discussing how best to engage with the Trump administration -- took a backseat to Democratic and Republican lawmakers accusing each other of "gaslighting" and "fearmongering" and pontificating about their interpretations of U.S. constitutional law.

Lawmakers also spent a ridiculous amount of time arguing unproductively about T rump -- something sure to please the attention-hungry president.

"It's beyond preposterous, it's beyond sad, it's beyond laughable, it's truly sad for someone to stand up here and tell us the president of the United States is not putting the children of California at risk," said Assembly Member Steve Bennett, D-Oxnard (Ventura County). "I feel sorry for some of my colleagues."

"Sometimes I wonder if people in this body understand that 6.1 million people (in California) voted for Donald J. Trump, including in all of your districts," said Assembly Member Joe Patterson, R-Rocklin (Placer County). "You're not representing them. ... You're saying, I want to fight with the person you voted for."

The arguing reached a pinnacle of absurdity when lawmakers took a formal vote on whether to let Assembly Member Marc Berman, D-Menlo Park, read aloud the text of a federal judge's ruling on Trump's executive order

about the federal funding freeze. Unsurprisingly, it passed on a party-line vote.

Yes, amid all the challenges facing California, this was what lawmakers spent their time on.

As the bickering intensified -- Assembly Speaker Pro Tempore Josh Lowenthal, D-Long Beach, repeatedly called for decorum and reprimanded lawmakers for using profane or inappropriate language -- it was impossible not to feel a deep sense of exhaustion and frustration setting in.

Was this lawmaking or performance art? Is the state serious about protecting its interests, or do our lawmakers just like the sound of their own voices?

Meanwhile, the slim possibility of continuing the bipartisanship we saw after the Los Angeles fires, when lawmakers unanimously approved $2.5 billion in aid as part of the special session, melted away Monday.

Assembly Member Leticia Castillo, R-Corona (Riverside County), pushed for an amendment that would explicitly prohibit taxpayer-funded legal aid from going to undocumented immigrants convicted of a crime -- a common-sense proposal that Democrats had appeared open to considering last week, when Assembly Speaker Robert Rivas, D-Hollister (San Benito County), unexpectedly delayed a vote on the immigration-funding bill.

But Assembly Member Jesse Gabriel, D-Encino (Los Angeles County), argued the amendment was "unnecessary" because the bill's authors -- himself and state Sen. Scott Wiener, D-San Francisco -- had submitted a letter stating that "none of the funding ... is intended to be used for immigration-related services for individuals with serious or violent felony convictions."

In other words: Trust us.

When Republican Assembly Member Bill Essayli, R-Corona (Riverside County), asked if that language would be inserted into the bill itself, the response was no.

But Gabriel and Wiener's letter "does not have any force or effect of law. It is simply a statement of the intent of the Legislature," legislative expert and lawyer Chris Micheli told me, adding that "courts have generally been reluctant to rely upon these in determining the meaning of ambiguous statutes."

So, the bill could very well result in taxpayer funds going to the legal defense of undocumented immigrants who have been convicted of a crime. For Democrats to pretend otherwise is not only disingenuous but also a repudiation of the unambiguous sign voters sent them in the November election to crack down on crime.

The irony is that all this posturing merely reinforced Trump's dominance. Instead of focusing productively on what California could do to prepare for the unpredictability of the next four years -- and identifying ways in which the state and federal government's agendas could actually align -- California lawmakers got caught up in the same political distractions and moral grandstanding that helped fuel Trump's rise.

They played right into Trump's hands.

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